

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 26-06

SAMSUNG ELECTRONICS AMERICA, INC.,

COMPLAINANT,

v.

WAN HAI LINES, LTD.

RESPONDENT.

**COMPLAINANT’S OPPOSITION TO RESPONDENT’S PARTIAL MOTION TO
DISMISS AND FOR ENTRY OF AN ORDER REQUIRING
THE FILING OF AN AMENDED COMPLAINT
AND
INCORPORATED MOTION TO FILE AMENDED COMPLAINT**

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”), by its undersigned attorneys, respectfully files this Opposition to the Partial Motion to Dismiss and for Entry of an Order Requiring the Filing of an Amended Complaint (“Motion to Dismiss”) filed by Respondent Wan Hai Lines, Ltd. (“Respondent” or “Wan Hai”), and Incorporated Motion to File Amended Complaint, pursuant to 46 C.F.R. §§ 502.69-71. Complainant respectfully submits the Motion to Dismiss should be denied as moot.

I. Introduction

On June 15, 2026, Respondent filed the Motion to Dismiss. Dkt. 10. Therein, Respondent seeks the dismissal of certain claims asserted in Count II of SEA’s Complaint

(Dkt. 1) related to Wan Hai's dispute resolutions processes. See Motion to Dismiss at 3-5. Respondent's Motion to Dismiss also seeks an Order requiring SEA to file an amended complaint "setting forth the amount of reparations [SEA] seeks" for certain additional damages alleged. Motion to Dismiss at 5-6.

Upon receipt of the Motion to Dismiss, SEA considered the most pragmatic means to dispose of the motion and move the case forward as similar arguments have been adjudicated in other proceedings before the FMC. Without admitting any issue with the initial allegations, by filing an amended complaint now, Wan Hai's motion can be dismissed as moot and Respondent can assess the scope of the allegations made. SEA's proposed amended complaint is attached hereto, and SEA respectfully requests that the Presiding Officer enter an Order accepting the amended complaint into the record as the operative complaint in this proceeding.

Prior to filing this opposition, counsel for SEA conferred with counsel for Wan Hai with regard to the approach being taken. Counsel for Wan Hai had no objection to SEA's filing of the amended complaint. For these reasons, as well as those explained more fully below, SEA's Motion to File an Amended Complaint should be granted and Wan Hai's Motion to Dismiss should be denied as moot.

II. SEA's Motion to File Amended Complaint Is Appropriate

Wan Hai raises two objections in its Motion to Dismiss: (1) insufficient pleadings on the dispute resolution claims in Count II ¹; and (2) the "additional damages" allegations

¹ In the Motion to Dismiss, Wan Hai asserts that the SEA's Complaint fails to plead sufficient facts to show that SEA "attempted to use Wan Hai's existing dispute resolution procedures" and that SEA "must explain how the procedures were insufficient." Motion to Dismiss at 3. In support, Wan Hai relies on a nearly identical situation found in *Samsung Electronics America, Inc. v. HMM Co., Ltd.*, FMC Docket 24-23, Order Partially Granting Motion to Dismiss (ALJ Chintella March 24, 2025). In that case, like here, respondent HMM moved to dismiss SEA's claims concerning HMM's dispute resolution processes for demurrage and detention charges. Judge Chintella denied HMM's motion, however, finding that SEA pled sufficient facts

in subsections (b), (c), and (d) of paragraph 37 to the original Complaint.² SEA's Amended Complaint adds new allegations to address both objections.

The Commission has recognized that leave to amend a pleading should be freely given when justice so requires in accordance with Federal Rule of Civil Procedure 15(a)(2). *SEA v. OOCL and OOCL (Europe)*, FMC Docket 24-17, Order Affirming Dismissal of Counterclaim (FMC July 30, 2025) (*citing* Fed. R. Civ. Pro. 15(a)(2)). This proceeding is in its infancy, no scheduling order has been issued by the Presiding Officer, Respondent has not filed an Answer, discovery has not commenced, Respondent has no objection to SEA's Amended Complaint being filed, and, if Wan Hai so chooses, the dismissal of the Motion to Dismiss on mootness grounds would be without prejudice. As this case has not yet begun in earnest, no party will be prejudiced by SEA's filing of an amended complaint. Moreover, the additional allegations of SEA's proposed amended complaint do not expand the scope of the claims already at issue. Rather, SEA's proposed amended complaint addresses the objections to SEA's Complaint asserted in Wan Hai's Motion to Dismiss. Granting SEA's Motion to File Amended Complaint, therefore, renders the Motion to Dismiss moot while simultaneously satisfying the Commission's call to freely allow amendments to pleadings. Moreover, and importantly, it alleviates both the parties and the Presiding Officer from having to engage in unnecessary motion practice.

to adequately allege HMM's conduct was violative of the Shipping Act. *Id.* Here, SEA's amended complaint includes additional allegations to more expansively substantiate the claims related to Wan Hai's inadequate dispute resolution practices and policies. See Amended Complaint at ¶¶ 33-37.

² While SEA denies Wan Hai's contention that its damages were insufficiently pled under the Commission's Rules, SEA has taken the opportunity to include its quantum of damages for these claims in the Amended Complaint. See Amended Complaint at ¶ 40.

Conclusion

SEA's Motion to File Amended Complaint should be granted because doing so will efficiently and effectively resolve Wan Hai's objections to SEA's Complaint. Pursuant to 46 C.F.R. § 502.71, counsel for SEA contacted counsel for Wan Hai to provide notice to Wan Hai that SEA would be filing this Opposition and Motion to File Amended Complaint and confer on the filing of SEA's Amended Complaint. Counsel for Wan Hai indicated that it did not oppose the filing of SEA's Amended Complaint.

WHEREFORE, SEA respectfully prays for an Order denying Wan Hai's Motion to Dismiss as moot and granting its Motion to File Amended Complaint and that the attached Amended Complaint of SEA be entered into the record.

Dated: June 30, 2026

Respectfully submitted,

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/s/ 

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail on the following persons/addresses:

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Dated: June 30, 2026

Respectfully Submitted,

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